MINUTES OF THE CITY OF HOLLADAY
PLANNING COMMISSION MEETING

Tuesday, September 2, 2025
6:00 PM
City Council Chambers
4580 South 2300 East
Holladay, Utah

ATTENDANCE:

Planning Commission Members:
Dennis Roach, Chair
Karianne Prince
Angela Gong
Jill Fonte
Paul Cunningham
Brian Berndt

City Staff:
Carrie Marsh, City Planner
Brad Christopherson, City Attorney

WORK SESSION

Chair Dennis Roach called the Work Session to order at 5:34 p.m. He reported that the newest Commissioner, Patrick Tripeny, was not present.

The agenda items were reviewed and discussed. City Planner, Carrie Marsh, noted that when she reviewed the Staff Report for Items 3, 4, and 5, the most current version was not included in the Meeting Materials Packet. She explained that the most current version will be shared on the screen. In addition, all Commissioners were provided with a printed copy. The changes were on Pages 3, 6, and 7. The new version removes references to a variance. In addition, lot width and a Code definition were included for exceptions to lot width. The previous version of the Staff Report was still available and she would be sure to highlight the differences between the documents.

Ms. Marsh shared information about the first Public Hearing item, "David McDonald Historic Home." She reported that this is a Conditional Use Permit ("CUP") application for property located at 4659 South Highland Drive in the R-M Zone. The David McDonald House was added as a Historic Site through the City Council. The new property owner is looking to use the location as a custom jewelry shop in addition to making modifications to the property. The Staff Report includes a review and recommendation from Community and Economic Development Director, Jonathan Teerlink. Ms. Marsh referenced the trim piece underneath the soffit and shared an image with the Commission. It is essentially exterior crown molding and can be seen in historical photos.

The three items that Mr. Teerlink noted for the Planning Commission discussion included the following:

- Second level addition – appropriate styling;
- Removal of the frieze from the upper cornice; and
- Scale of columns supporting the front porch.

Ms. Marsh stated that it is possible to discuss those items with the applicant during the Regular Meeting. Chair Roach asked if this was approved as a historical building at the last City Council Meeting, which was confirmed. Based on the Code for Historic Sites, there was no way to designate new buildings to the site designation list. That was one of the changes that were made in the Code modifications for Historical Site Preservation earlier this year. This was one of the homes called out in the General Plan and it has already been on the National Historic Register. Now that it has been added to the Code in the Historic Sites, it is eligible for a conditional use.

Chair Roach asked what conditional use the historic designation permits. Ms. Marsh explained that the property is zoned R-M. It is typically easier to go through a designation and Historic Modification CUP than to rezone to PO. That was an option the property owner had available but Staff encouraged the applicant to go through the CUP process instead.

Commissioner Cunningham asked about the site modifications mentioned in the Staff Report. Ms. Marsh clarified that the site modifications relate to the exterior of the building, including the second-level addition, front porch, Americans with Disabilities Act ("ADA") ramp, and some landscaping modifications. Commissioner Gong believed tree removal was also mentioned. Ms. Marsh reported that two pine trees in the front were removed and some replacement is required either on-site or off-site. When a tree is removed, replacement is required. The applicant may have plans to plant trees in the front yard, or there might be a request to have half of the replacement trees located off-site. For instance, if two are required, one could be placed off-site.

Ms. Marsh reported that the remaining Public Hearing items on the Regular Meeting agenda pertain to the "Amare Vita" application. She reminded the Commissioners that there were Discussion Items on the last Planning Commission Meeting agenda. The previous version of the Staff Report was shared. She identified the sections that mention a variance. The updated version was shared and it was noted that the Planning Commission discussion will focus on that document.

Three Public Hearings will relate to the "Amare Vita" application, starting with the Conceptual Subdivision, Planned Unit Development ("PUD"), and Preliminary Plat. Ms. Marsh mentioned the Conceptual Subdivision and the change that was made. The lot width is reduced from 100 feet due to significant trees and streams/floodplains.

13.04.040 – Lot Width states:

- The diameter of the largest circle that can be inscribed entirely within a lot. The lot width circle shall not include streams/floodplains, wetlands, areas of thirty percent (30%) slope or greater or other natural hazard areas or a "significant tree," as defined in this title.

Ms. Marsh reported that a Concept Subdivision Layout is overlayed on the Tree Plan. The significant trees shown on there, in addition to the waterway, are the basis of reducing the lot width from 100 feet to a range of 89 feet to 92.5 feet. The lot frontage will still be met.

Commissioner Cunningham thought the removal of one lot would make this design work better. Ms. Marsh noted that there is enough land area for each of the lots. The natural features with the trees and waterway are what have reduced the lot width standards to 92 feet on average from 100 feet. Chair Roach believed that if the building was built within the circle shown, it would be in compliance with the lot standards. This was confirmed. Commissioner Cunningham stated that

the City has done a great job of maintaining the character. He would like to see the subdivision embrace that idea more, rather than having a lot of different homes right next to one another.

Ms. Marsh pointed out that a PUD allows a more creative layout than what a standard Subdivision would allow. There can be more flexibility as far as where structures are placed. Commissioner Cunningham noted that there is language about areas of coverage. He believed that it was because of the swimming pool that was included in the original plan. At the last Planning Commission Meeting a comment was made that there was no intention of including the swimming pool in the documents. He wanted clarity about the areas of coverage that are being approved.

Ms. Marsh shared the standard for lot coverage, which is 23% for structures and 28% total in the R-1-43 Zone. It is 20% for structures and 33% total in the R-1-87 Zone. The Code allows for bonus coverage, which would increase the total lot coverage by 10%. There are different standards across the different zones. The Planning Commission could apply the lot coverage standard to each zone or create a standard that is applicable to the overall project. A recommendation was included in the Staff Report. Since the proposal is seeking to shift one of the dwelling units to the east side of the creek, it seemed less complex to have a standard that applies across the entire project. The recommendation was 22% since most of the land is in R-1-43. She noted that 60% of the project area is within the R-1-43 Zone. As a result, a coverage limit of 22% and 27% was recommended but was something the Planning Commission can discuss with the applicant.

Ms. Marsh mentioned the parcel analysis, which is an addition since the last Planning Commission Meeting. It shows how many parcels are one and two acres in each zone. Most of the parcels in the R-1-43 Zone are conforming or overconforming. A few parcels in the R-1-87 Zone are smaller than two acres. Ms. Marsh explained that the nature of PUDs is that the property will not necessarily be in full conformity with the zone. That is the reason it is recorded on the Plat as being a PUD. When PUDs are created, there is an overall project area and then the set building areas are recorded. There are several examples of large-scale developments that resulted in lots that are smaller than the zone standard, but the tradeoff is that there is open space that is common or is shifted to other areas within the project. Chair Roach asked if the properties would fall as low as the R-1-21 Zone standard, which was denied.

Ms. Marsh reminded the Commissioners that during the last discussion, a question was raised about trees. The applicant added additional details to the Tree Plan. It now shows the canopy area that is being removed, which was shown in the clouded areas in red on the plan. The red diagonal lines are where there is roadway beneath the canopy. It is possible to review this with the applicant. Chair Roach asked if the red circles specify canopy removal or the existing canopy. Ms. Marsh identified the tree canopy to be removed and that will remain. There are areas where the tree canopy will be removed for the road. Chair Roach believed that on Lot 4, there is tree canopy to remain with a house built in the middle of the red circle. Ms. Marsh noted that there might be some smaller trees but those details can be confirmed by the applicant.

Earlier in the discussion, a swimming pool was mentioned. Ms. Marsh clarified that it has not been confirmed for the development as the swimming pool was conceptual. It is, however, shown on some of the documents provided in the Meeting Materials Packet. Information about setbacks was shared with the Planning Commission. At the last meeting, there was discussion about some

of the utility easements. There will not be structures within the utility easements, which impacts some of the setbacks. Additional setback details were reviewed.

Commissioner Cunningham believed the minimum separation between buildings is 10 feet, which was confirmed. In addition, all of the structures have a 100-foot setback from the creek. Commissioner Fonte asked when the adjacent property owners received notice. Ms. Marsh reported that there have been three notices for the same project and no comments were received.

The Work Session ended at 6:10 p.m.

CONVENE REGULAR MEETING – Public Welcome and Opening Statement by Commission Chair.

Chair Roach called the Regular Meeting to order at approximately 6:10 p.m. and welcomed those present. Commissioner Prince read the Opening Statement for the benefit of those present.

ACKNOWLEDGMENT OF SERVICE

1. Recognition of Service Award – Presentation of Service Award to Ginger Vilchinsky for her Volunteer Service as a Planning Commissioner for the City of Holladay.

Chair Roach recognized the serve of Ginger Vilchinsky, who previously served on the Planning Commission. Gratitude was expressed for her service.

PUBLIC HEARINGS

2. "David McDonald Historic Home" – Conditional Land Use Permit – 4659 South Highland Drive (R-M Zone). Review and Consideration of a Request by Applicant John Branscomb as Owner, for Modifications To and Use of a Designated Historic Property. Item Reviewed as an Administrative Application as per Provisions Stated in Holladay Ordinance §13.86.030 and §13.08.040. *File #25-00-00.*

Ms. Marsh presented the Staff Report and stated that the above item is a CUP for the David McDonald Historic Home. It is the newest site designation as a result of action taken by the City Council the previous week. The property is known as the David McDonald House and it is located at 4659 South Highland Drive in the R-M Zone. It has been used as offices and a residential treatment facility in the past. The new property owner is looking to open a custom jewelry shop in addition to making modifications to the property. The first few pages in the Staff Report review what is in the City Code. There is also a review of conditional uses on a Historic Site. She reiterated that the proposal is for a jewelry store that handles custom jewelry, which is similar to an antique or art shop. The site has limited parking. As a result, the property owner is seeking to improve the parking by refinishing the parking lot and adding additional parking.

The Staff Report includes some of the historic details of the property. Ms. Marsh reported that it was built in 1890 by David and Arabella McDonald, who immigrated to Utah from Scotland in 1869. Mr. McDonald was a blacksmith and his blacksmith shop was located close to the property. The family has owned the home for many years. An original photograph of the house was presented and it was noted that some modifications were made in 1912, including the addition of a porch.

On the rear side of the property, there is a rear porch addition, which was likely done in the 1960s or earlier. The applicant is proposing changes to that as there are structural issues. The proposal

is to remove it and make modifications to address the structural issues and add a second level as a sunroom. Other modifications are proposed on the front of the home with the addition of an ADA access and a porch. The windows will be modified for security and energy efficiency but the window frames will not. Ms. Marsh pointed out the stained-glass windows and believed they were intended to remain. Modifications to the landscaping were proposed. There are two large pine trees in front of the property but because of the location of power lines, replacing them with tall trees might be difficult.

There has historically been a trim piece below the roof line. It is possible for the Planning Commission to speak to the applicant about including that in their modifications. The items noted by the Community and Economic Development Director for Commission discussion included the following:

- Second level addition – appropriate styling;
- Removal of the frieze from the upper cornice; and
- Scale of columns supporting the front porch.

Ms. Marsh noted that the fence on the site was originally constructed in 1912. It was suggested that it possibly be included on the site. If it is not to be used in the front of the site, it could be incorporated elsewhere since it is noted on the National Historic Register. Commissioner Gong commented that in the renderings and stated that there appears to be an iron fence. She asked if that is the same fence that is on the site currently. Ms. Marsh is not certain but stated that the applicant could provide clarification. Chair Roach mentioned the list of suggested findings from the Technical Review Committee ("TRC") and asked if these items need to be addressed with the applicant. Ms. Marsh noted that a condition can be added specific to trees.

The applicant, John Brooks Branscomb, identified himself as the owner of J. Brooks Jewelers. He has been looking at this building for about one year and decided to purchase it. As for the fence in the front, there is no intention to remove it. Based on how the architect wants to build an entrance, it will need to be removed, repaired, patched, and reinstalled. The intention was to continue utilizing the fence. In addition, the design will be mimicked on the porch. Mr. Branscomb explained that adding the porch seemed to make the most sense because there had been a porch for many years. He shared information about the trees and explained that the pine trees are dead and cannot be saved. The architect assured him that if additional trees need to be planted, they can be incorporated into the plan. In the back, there is an old, abandoned canal that has not had water for 30 years. The surveyor was on the site the previous week and was trying to determine the location of the property line.

Mr. Branscomb explained that there is no desire to change the look of the home to the point that it will not be recognizable. The McDonald family members, who are 88 and 90, came by the store over the last several weeks and he was able to meet them. There is excitement that the home will be used. According to one of the family members, the back porch open his entire life. Since room is limited, there is a desire to add a vault, which involves rebuilding the foundation there. Mr. Branscomb reported that the proposed use will have a low level of use, with 15 to 20 vehicles per day as compared to the several hundred vehicles per day at the coffee shop one block to the south. Some dead trees have been removed and the cleanup process is underway.

Chair Roach asked if there would be support to add a few columnar trees in the front. Mr. Branscomb was confident that something could be worked out. The architect cautioned against the inclusion of a specific Condition of Approval, as there are details that still need to be determined. Chair Roach understood that there are limitations. He mentioned the suggested Conditions of Approval from the TRC and believed that retention of the fence is planned. Chair Roach asked about improvements within 20 feet of the canal on the east side of the property. Mr. Branscomb explained that there is a desire to pave from the back of the home to the fence line. Doing so will provide adequate room for the necessary parking. No one he has spoken to thinks that the canal is active. The question pertained to ownership of the canal, which was being determined. It is essential to be able to pave back to that location to have parking on the site. Commissioner Berndt asked how far the canal is from the building. It was reported to be approximately 24 feet.

Commissioner Cunningham asked if Staff had looked at the parking on the site. Ms. Marsh stated that the parking will be based on the use. If the intent is to add parking in the rear, a reasonable condition would be to follow the Code for waterway protection. That requires a property owner to work with the canal company if there are modifications within a canal area. If it is an abandoned canal, that can be worked out and verification can be provided. Ms. Marsh reported that waterway protection is where the 20-foot distance comes in. The intent is to protect banks from erosion and maintain trees along canals. Conditions of Approval could focus on compliance with waterway protection and tree canopy sustainability. If the canal is abandoned and the waterway protection does not apply and trees are removed, those trees would need to be replaced with a mature canopy of equivalent size on the property. 50% could be replaced off the property. As for parking, if there is not enough parking available or a way to locate parking on the site, it is possible to explore a Shared Parking Agreement with a neighboring business.

Chair Roach pointed out that if the parking lot is to be expanded, there are Code requirements pertaining to tree islands. Commissioner Gong asked if the existing parking is enough for the proposed use. Mr. Branscomb reported that there are seven stalls on the site currently. Ms. Marsh explained that the parking requirements are based on square footage. She believed that seven parking stalls would be adequate but had not yet done a full parking assessment. The Planning Commission can ensure that there is a condition that specifies that the parking standards must be met.

Chair Roach asked about the frieze and whether that will remain. Cory Solum from Think Architecture identified himself as the Project Architect. The overall goal is to maintain and repair the frieze board that is at the soffit, however, some of the window trim will need to be modified as replacements occur. The intention is to maintain as much of the existing frieze as possible, with the understanding that some parts may need to be refabricated and rebuilt. Mr. Solum shared information about the fence and explained that the overall goal is to take the existing historic fence and reuse it on two sides of the pillars. Some of the fence is in poor condition and is rusted through. The design accounts for sections that might not be able to be reused. Mr. Solum explained that the applicants love the fence and the goal is to keep it on the site but enhance it as much as possible.

Chair Roach asked about the scale of the columns that will support the front porch. Mr. Solum believes those are approximately 14’ x 14’. It is possible to work on the proportions, as the intention is to have a box column with several pieces of trim. He explained that the goal is to

create an entry porch that appears to be more historical in nature. Mr. Solum clarified that the original home did not have a porch but one was added later. It was noted that the porch complements the home and will protect the ramp planned for ADA access.

Commissioner Prince asked about the columns shown in the depiction. The columns appear to be round, which is not the same as a box column. Mr. Solum clarified that it was requested that a shift be made so that it is a round column instead. He explained that a revision was made to the appearance of the columns approximately one week ago. Commissioner Prince asked about the stained glass. Mr. Solum reported that there is a desire to keep the stained glass on the house but the stained-glass modules will be different than the new glass. The goal is to work with the window manufacturer in order to reinsert the stained glass. If that is not possible, the stained glass will be reused on the interior of the project.

Commissioner Fonte appreciated that every retailer wants maximum visibility for their storefront, however, that that the City of Holladay is a Tree City USA, it is not unreasonable to include a Condition of Approval for columnar trees in front of the property. Chair Roach acknowledged the power lines in the area that need to be taken into account. It is possible to put in columnar beech trees, for example, as they would fit in in the proposed location. In addition, the green space would soften the noise and heat islands that exist along the Highland Drive corridor. Mr. Solum explained that there is no opposition to this and pointed out that there are a lot of trees on the property.

Ms. Marsh asked if the Planning Commission was tied to columnar trees. She questioned whether there is an openness to a flowering small-scale decorative tree. It is possible to provide some flexibility in the Condition of Approval language. There was support for additional flexibility. Chair Roach asked that the motion language include a reference to a small to medium tree.

Chair Roach opened the public hearing. There were no comments. The public hearing was closed.

Commissioner Gong commented that the use is reasonable in terms of intensity. The suggested modifications to the structure are in line with the historic look and feel of the property. She appreciated that the applicant was being thoughtful about preserving various elements. Chair Roach agreed with the comment made by Commissioner Fonte about smaller trees in the front. There is a power line that needs to be taken into account but trees can still be added.

Chair Roach moved to APPROVE the Application for a Conditional Use Permit for a Historic Site Modification and for Use as a Jewelry Shop for the "David McDonald House," designated as a Historic Site by Section 13.86.020 of the City of Holladay Code, located at 4659 South Highland Drive, subject to on the following:

<u>Findings</u>:

1. ***Modifications to the building and site are considered to be substantial, as defined by 13.86.050.***
2. ***The proposed modifications, overall, do not detract from the historic nature of the building architecture.***
3. ***The enclosed north and west porches, while not part of the original structure, have been in place for at least 47 years or longer.***

4. ***The proposed contemporary rear addition adds usability to the home and its location on the rear of the home does not detract from the historic feel when viewed from the street.***
5. ***The proposed use is similar in nature and intensity to those included within Chapter 13.86.060 – Additional Uses Allowed.***
6. ***The proposed use and modifications align with the Highland Drive Master Plan.***

Conditions:

1. ***Front fencing no higher than 4 feet in the front yard and to meet clear view standards at driveways (15 feet parallel and perpendicular to the sides of the driveway).***
2. ***Parking to meet the parking requirements for use.***
3. ***Retention and reuse of the original iron fence from 1912, as noted in the National Historic Register, on the property.***
4. ***Compliance with Waterways Protection for the canal on the east side of the property. Any additional parking must be compliant with City Code standards.***
5. ***Add two small to medium trees that will work with the landscaping in front of the home.***

Commissioner Fonte seconded the motion. Vote on Motion: Commissioner Berndt-Aye; Commissioner Gong-Aye; Commissioner Prince-Aye; Commissioner Fonte-Aye; Commissioner Cunningham-Aye; Chair Roach-Aye. The motion passed unanimously.

The Planning Commission took a short break before hearing the remaining items.

3. "Amare Vita" Residential Subdivision – Concept Plan – 6114, 6178, 6190 South Holladay Boulevard (R-1-43) and 2715 East 6200 South (R-1-87). Review and Consideration of a Residential Site Plan Proposed by Applicant J.U.B. Engineering to Subdivide 11.42 Acres of Land Consisting of 9 Lots within the R-1-43 and R-1-87 Zones. Item Reviewed as an Administrative Action for Permitted Uses in Accordance with Zone and Subdivision Standards Required by Holladay Ordinance §13.10A. *File #25-1-08.*

Chair Roach reported that the Public Hearing was still open for the above matter from the last meeting. Ms. Marsh presented the Staff Report but explained that the Meeting Materials Packet published online does not include the latest information. She shared what is publicly available and compared it to the updated version. The references to a variance for a standard Subdivision were removed. Instead, there is reference to the definition for lot width and how that is determined on properties.

Ms. Marsh explained that when there is a standard Subdivision, the applicant must show that the lots being proposed meet the minimum zone requirements. This property is across two separate zones since there is land in the R-1-43 Zone and in the R-1-87 Zone. The R-1-43 Zone section is located east of Big Cottonwood Creek and there is a 100-foot minimum lot width. The Concept Subdivision references the lot width being reduced from 100 feet due to significant trees and streams/floodplains on the site. How the lot width is determined is defined in the Code.

The Applicant Narrative, Notice Area, and Concept Subdivision were shared. Ms. Marsh noted that the Concept Subdivision shows the significant trees that are on the site. The lot widths are reduced from 100 feet to 89.57 feet at the smallest size and 92.67 feet at the largest size. There are nine total lots in the project area, with seven lots on the Holladay Boulevard side. All will have access to Holladay Boulevard and the minimum lot requirement for frontage at the public right-of-way is met. In addition, the lot sizes are met, as each is at least one acre. On the R-1-87 Zone side, the frontage and overall lot width requirements are met. There are two lots on that side. She reiterated that there are a total of nine lots in the concept, which will be used as a basis for the PUD. Ms. Marsh offered to answer any outstanding Commissioner questions.

There was discussion about the lots shown on the conceptual drawings. Ms. Marsh explained that the normal process will establish the Subdivision first to determine whether the zoning requirements are met. The Meeting Materials Packet shows that the Subdivision can be approved and meets the zone minimums. Commissioner Gong pointed out that the acreage requirements are met for a subdivision but not the minimum lot width. Ms. Marsh confirmed this but noted that it can borrow from what it cannot use on the creek side. Chair Roach explained that it is not possible to build where the creek runs through the property, which makes a variance possible. City Attorney, Brad Christopherson, explained that there would not be a variance but a variation. He noted that "variance" is a legal term. There needs to be an adjudication process to grant a variance.

Commissioner Gong believed the variation would push up the buildable area from the back of the lots but does not impact the width. Ms. Marsh pointed out that significant trees limit where the lot lines can be located. Commissioner Gong commented that, based on the PUD information, it seems that a lot of trees are being removed. She wanted to understand how it can be a limitation while later portions of the application process include the removal of trees. Chair Roach explained that the current request considers whether there is enough land for the zone. There was discussion about the current application.

Commissioner Gong asked why so many lots are being proposed when it does not meet the minimum lot width requirement. Ms. Marsh explained that the trees and the creek are being taken into consideration. There can be a variation to the lot width because of those natural features. A question was raised regarding how the variation is determined. Ms. Marsh clarified that there is no specific guideline but it is based on the total amount of land.

Commissioner Fonte referenced the drawing on Pages 85 and 86 of the Meeting Materials Packet and asked for additional clarification. On Page 86, there are the two lots that are parallel to Murray Holladay Road. There are then five lots that are slightly wider behind. Ms. Marsh explained that it is the PUD layout. She discussed clustering development around where the roadway access will be. There is a limited area next to the creek. She identified the floodplain on the drawings and stated that part of the process is to establish how many units can be within the project.

Chair Roach asked to review 13.040.050. Ms. Marsh explained that the text is quoted in the Meeting Materials Packet. She also shared a figure that shows how the lot width is determined. Occasionally, there will be odd-shaped parcels in which case the lot width is based on the widest point. Chair Roach referenced the comments made by Commissioner Gong about the 100 feet and the variation. He asked if the Planning Commission determines whether the widest point is appropriate. Ms. Marsh reported that the assessment was done by Staff, who looked at the

definition of lot width and determined whether the lot width could be varied. Mr. Christopherson explained that the map that was drawn with the trees and narrow widths was done to establish density. No determination was being made about lot lines, but the density that can be supported. It is a multi-step process and the first step focuses on the establishment of density. The reason the variance language was removed was because it would be difficult to meet the requirement for a variance on these particular lots. He shared variance examples in the community.

Ms. Marsh noted that the definition of lot width allows for variations. This is the basis for what has been presented. Mr. Christopherson reiterated that the document shown is intended to show that nine lots can fit on the property. He explained that it can do so using the variation allowed for in the Code. Chair Roach pointed out that once the concept is approved for nine lots, it will impact other elements of the application. The case that has been made by Staff is that nine lots can fit on the property. Ms. Marsh shared information about driveways and explained that a driveway needs to be five feet from a property line, which would apply on both sides, resulting in 10 feet between driveways. Commissioner Cunningham asked if the numbers in the application are based on the 100-year floodplain line or 100 feet from the creek. Ms. Marsh identified the floodplain area and explained that it essentially follows the creek bank and is wider in a specific area.

The Commission further discussed the application. Mr. Christopherson noted that the State of Utah values private property rights. Chair Roach reiterated that the Planning Commission is considering whether the Concept Plan meets the criteria set forth by the City of Holladay Code and Ordinances.

Chair Roach opened the public hearing. There were no comments. The public hearing was closed.

A question was raised about whether the Tree Plan is sufficient. Ms. Marsh explained that the presence of trees is where the lot width variation comes from. Chair Roach believed the tree details are related to the PUD portion of the application rather than the conceptual discussion. Commissioner Gong thought it made sense to specify that any trees used as part of the rationale for the variation cannot be removed later. Mr. Christopherson explained that in this first step, the Commission is establishing the base density. The question was whether nine lots can fit in this area. He reiterated that the Commission is trying to establish a base density. Based on the language in the ordinance, there is a way that nine lots can be fit onto the property with the variation of the widths.

Commissioner Gong asked if the Commission is granting the variation as part of the approval. Mr. Christopherson explained that there are different steps as part of this process. The applicant has to document that they can fit nine lots to establish the base density. The Commission was asked to determine whether the nine lots can fit on the property, using the Code as written. Ms. Marsh noted that if certain conditions exist, the lot width can be varied. Commissioner Gong wanted to understand what would happen if the Commission determined that nine lots could fit on the property. For instance, if the Commission is obligated to approve nine lots in the PUD, even if that might not preserve the natural features included in the variation. Mr. Christopherson confirmed this, assuming that it was shown that nine lots could fit on the property. Chair Roach believed that, based on what has been presented, the application checks the boxes conceptually.

Commissioner Prince moved to APPROVE the Conceptual Subdivision for "Amare Vita," a nine-lot Residential Subdivision in the R-1-43 and R-1-87 Zones, located at 6114, 6178, 6190 South Holladay Boulevard and 2715 East 6200 South, subject to the following:

Findings:

1. ***The development complies with the R-1-43 and R-1-87 Zone standards.***
2. ***Lot width can be reduced due to significant trees and other natural hazards on the parcels.***
3. ***Utility letters have been provided/are in progress.***
4. ***Fire access requirements either are or can be met.***

Conditions:

1. ***A Preliminary Plat is submitted and reviewed by the Planning Commission.***
2. ***Remaining utility letters are provided before Final Plat approval.***
3. ***Any proposed PUD details the location of open space and preserved trees.***
4. ***Final easement details and alignments to be included on the plat.***
5. ***Fire access roads shall be improved to a material to hold 24 tons; No Parking signage is required within fire access areas.***

Commissioner Cunningham seconded the motion. Vote on Motion: Commissioner Cunningham-Aye; Commissioner Fonte-Aye; Commissioner Prince-Aye; Commissioner Gong-Nay; Commissioner Berndt-Aye; Chair Roach-Aye. The motion passed 5-to-1.

4. "Amare Vita" – Planned Unit Development Conditional Use Permit – 6114, 6178, 6190 South Holladay Boulevard (R-1-43) and 2715 East 6200 South (R-1-87). Review and Consideration of a Request by Applicant J.U.B. Engineering to Subdivide 11.42 Acres of Land as a Planned Unit Development. Item Reviewed as an Administrative Application as per Provisions Stated in Holladay Ordinance §13.08.040. *File #25-1-08.*

Ms. Marsh presented the Staff Report and stated that the request is CUP for a PUD and to place the nine units in various locations on the property, as detailed in the PUD Site Plan. The property is located at 6114, 6178, and 6190 South Holladay Boulevard in the R-1-43 Zone. 2715 East 6200 South is a parcel located in the R-1-87 Zone. Much of the analysis included in the Meeting Materials Packet was based on the project overlapping between two zones. 60% of the land is in the R-1-43 Zone and the other 40% is in the R-1-87 Zone. The property is located in the Estates area and is bisected by Big Cottonwood Creek. There are 11.42 acres total, with 4.29 acres in the R-1-87 Zone. The zone allows for two units per acre. There are 7.18 acres in the R-1-43 Zone, which allows for one unit per acre. She explained that the density calculation is for nine units. The concept was reviewed and approved earlier in the Planning Commission Meeting.

The Staff Report includes summary and background information as well as the zone standards. Ms. Marsh explained that there are details related to the minimum lot standards. For example, street frontage, minimum lot width, and how that varies between the two different zones. The orange in the report represents the R-1-43 Zone and the blue represents the R-1-87 Zone. Private rights-of-way have a 20-foot front setback and there is an average rear setback of 41 and 45 feet. Side setbacks are a percentage, so the calculation depends on how wide the lot is. Accessory building setbacks are nine and 15 feet. The total lot coverage for structures is 23% in the R-1-43

Zone and 20% in the R-1-87 Zone. Hard surface coverage is an additional 5% above that. Bonus percentage can be applied to the hard surface. Building height is limited to 40 feet for lots over one acre. Lots less than one acre in size and larger than one-half acre have a maximum height of 35 feet.

The graduated height requirement still applies and is determined by a 45-degree angle that begins at a point eight feet above the property line. The structure has to fit within that building envelope. Ms. Marsh reported that the Staff Report includes an illustration of graduated height. She explained that the purpose of a PUD is also included in the Staff Report and that language is taken from the Code:

- Permit flexibility in land use, allow diversification in the interrelationships of various uses and structures with their sites and thus offer an alternative to conventional development;
- The application of planned unit development concepts is intended to encourage unique neighborhoods, high-quality housing, exceptional design, additional open space, and facilities compatible with the present living environment in the City;
- Ensuring compliance with the purpose protects the health, safety, and public welfare of the future inhabitants of, or visitors to the PUD;
- Imaginative site planning and maximizing energy utilization efficiency are significant advantages that can be secured through a PUD, with the objective of preserving existing greenery and significant trees on site;
- The PUD must create unique benefits for both the property owner and the city even though it does not allow additional density; and
- Applicants must justify why the project is better than a project developed as the underlying zoning would allow.

Ms. Marsh reported that the details of the PUD start on Page 62 of the Meeting Materials Packet. The lot sizes on the eastern portion of the property are approximately 0.75 acres. She explained that shifting one of the dwelling units from the west side of Big Cottonwood Creek to the east involves clustering dwelling units to the side where there is more frontage and access. A chart shows what is required in the R-1-43 and R-1-87 Zones as well as what is proposed. Rear setbacks on each of the lots will be 100 feet, which accounts for the protection area of 100 feet. Two parcels already have development on them and the setback are 50 feet, so there is an increase proposed. The side setback is 20 feet on the south and there will be a side setback of 20 feet along Holladay Boulevard. No accessory buildings are proposed but that would be nine feet in the existing zone. She explained that there are no setbacks proposed on the front of the lots so there is some flexibility on the placement in proximity to the private roads. The private roads are not accessible to the public and will only be accessible to those living within the development.

Commissioner Gong asked for additional information on the accessory building setback since the Staff Report shows that none were proposed. Ms. Marsh clarified that a separate setback is not proposed for accessory buildings. In the future, if someone wishes to build an accessory building on their property, the accessory building have to be located within the buildable area.

Ms. Marsh discussed building heights and noted that since the lots on the east side will be less than one acre in size, there will be a maximum 35-foot building height. Lot coverage issues were discussed during the Work Session. The limit for each of the zones is detailed in the Staff Report

and is slightly different based on the zone. It is possible, however, to set a lot coverage limit for the entire project. The Staff Report also reviews each of the purpose statements and objectives. Staff support for the items was detailed as well. One of the points relates to the reduction of driveways on Holladay Boulevard due to a singular access road. At the previous Planning Commission Meeting there was discussion about the gate. The Site Plan specifies that there is a dedication area of seven feet on Holladay Boulevard for shoulder improvements. Having a shoulder would allow vehicles to queue if there was ever a line for the gate. It is possible to ask the applicant if the intention is for it to remain at 18 feet. The Commission can then consider an appropriate distance.

Another issue discussed at the last Planning Commission Meeting was the number of non-conforming parcels in the area. A map was provided in the Staff Report identifying one and two-acre parcels. In the R-1-87 Zone, there are six parcels that do not conform to the zone; however, in the R-1-43 Zone, most of the homes along Holladay Boulevard are in conformance. Ms. Marsh referenced the Findings and Conditions of Approval included in the Staff Report.

Chair Roach asked the applicant to share information about the application prior to the Public Hearing. Brandon Ames identified himself as the applicant's representative. The intent is for the landowner to build a forever home and provide lots for his children. The number of lots coincides with the number of family members. Not all of the children will necessarily choose to build on the site. If there is a sale, the Covenants, Conditions, and Restrictions ("CC&Rs") include a clause that the applicant has a right of first refusal to purchase the lot back. The intent is for it to be a family PUD. It was determined that a PUD would be the best way to avoid multiple driveways on Holladay Boulevard and make better use of the lot shapes. The landowner is passionate about history and has a strong opinion about building for the future. A great deal of effort and thought have been put into the layout, including which trees will remain.

Chair Roach noted that at the last Planning Commission Meeting, there was discussion about the historic rock walls. He asked if they are to remain. Mr. Ames confirmed that they will remain and be restored. Chair Roach asked that this be added as a Condition of Approval. Mr. Ames reported that he spoke to the landowner about increasing the depth of the gate, which there was support for if it is something the Planning Commission feels strongly about.

Commissioner Cunningham stated that the PUD requires that the plan include unique benefits for the City and asked that they be highlighted. Mr. Ames mentioned the widening of Holladay Boulevard, not having seven driveways on Holladay Boulevard, and preservation of the wall. There was discussion about the lot coverage maximum. Mr. Ames informed the Commission that the landowner has spoken to the neighbors and received support for what is proposed.

Chair Roach opened the public hearing. There were no comments. The public hearing was closed.

Chair Roach mentioned Page 14 of the Staff Report and the findings listed. He referenced the fifth item that refers to meeting the purpose statement for a PUD. He asked if anyone on the Commission feels this does not meet the purpose statement. There was support for the drafted language. Commissioner Gong mentioned the fourth item and asked if his fellow Commissioners were comfortable with the proposed setbacks. Chair Roach expressed support as long as the setbacks are not impacting the adjacent property lines. There was discussion about what could

happen to the property in the future. Chair Roach asked if Commissioners wanted standard setbacks as a Condition of Approval. Commissioner Cunningham asked what would happen if the Commission required standard setbacks. Ms. Marsh explained that if standard setbacks were implemented, it could further limit the building space. She pointed out that the creek already limits the space that is available. The applicant is working around trees and the creek setback. Those natural features are creating a challenging building situation already.

Mr. Christopherson explained that one of the main reasons a PUD exists is to allow for the variation of setbacks. This has been seen in many of the PUDs considered by the Planning Commission. To allow for flexibility, he did not recommend imposing different setbacks. Commissioner Berndt stated that the Commission does not know exactly how this is going to look. Chair Roach pointed out that if the PUD is not approved, the wall will be lost as well as the trees along the wall. Several other proposed elements would be lost as well. Commissioner Gong asked if there had ever been a zero-foot setback for a PUD. Ms. Marsh explained that in a standard subdivision, the applicant would likely receive a variation to the standard setbacks. There are situations where parcels meet the standards but they are so narrow that a variation to the setback is needed for there to be buildable area. There was discussion about other projects.

Commissioner Fonte mentioned the pine trees and the stone wall that will be restored. Her concern was that there will be small single-family homes that are close together. She expressed concerns about the trees that will be removed. Although the canopy will be restored, it be many years in the future before the trees reach maturity.

Chair Roach noted that a sticking point for some Commissioners seemed to be the setbacks. Commissioner Gong did not believe zero setbacks should be in place. Commissioner Prince pointed out that no one will be obligated to purchase a lot that has those setbacks. Ms. Marsh explained that in a PUD, it is possible to combine units into a singular building as well. If the applicant were to come back and remove utility easements across Lot 4, Lot 5, and Lot 6, it would be possible to combine a couple of units. The intention of a PUD is to provide some flexibility.

Mr. Christopherson clarified that the accessory building setback is not for an accessory dwelling. There can be a detached accessory dwelling unit ("D-ADU") on any lot, but the Building Code must be followed for separation. An accessory building would be for something like a shed. Ms. Marsh reported that, according to the Building Code, there needs to be five feet of building separation. If it is closer than five feet there needs to be fire-rated walls. There was additional discussion about the findings enumerated in the Staff Report.

Chair Roach asked if the vegetation is preserved as a buffer between adjacent properties. The tree plan was reviewed with trees on the perimeter that are remaining pointed out. Trees along Holladay Blvd. and 6200 S also preserved. Some removal of less desirable trees. Replacement of tree canopy was discussed. He questioned active and passive recreation, and it was mentioned that the creek and enjoyment of it and the surrounding are provides active and passive recreation. Several commissioners pointed out those examples, as did staff.

Chair Roach discussed finding 12 an that it was clear that the major benefit and win with the PUD was the creation of singular access points instead of individual driveways along Holladay Blvd that reduce the traffic impact and make entry and exit on an arterial road safer.

Commissioner Cunningham and Berndt brought up bike safety as improvements are placed in the right way.

Commissioner Roach moved to finding 13 and inquired about the "higher intensity". Staff discussed the residential treatment facility next door being a higher intensity and a street view of the wall and intersection was shown.

In reviewing conditions the structure coverage proposed by staff was discussed briefly with the applicant who stated that it was reasonable. The applicant discussed the exercise of coverage shown on their site plan and that it supported the coverage proposed. Some discussion around tree canopy replacement requirements between the commissioners and that the trees being removed would be okay with having required replacements.

Chair Roach brought up the point about the rock walls and stated that was clear. Commissioner Cunningham discussed how the walls would be/are on public right of way and that while it's nice, that once the City decided to make improvements, the walls wouldn't necessarily remain. This was noted as a possibility, but the tradeoff of having the property owner maintain and repair the existing walls was discussed as still being a positive tradeoff.

The gate and queuing of cars was discussed by Commissioners Berndt, Fonte, Gong, and Cunningham. There are concerns about traffic back up and blocking Holladay Blvd. Additional length for the gate distance from the road was discussed. Commissioner Cunningham expressed a preference of two vehicle lengths. Staff clarified that the standard distance of a parking stall is 18 feet long and is the required minimum. Staff also discussed shoulder improvement and that the width of the road would allow for potentially an extra vehicle entering the property to wait in the exit lane outside of the gate to queue. An existing vehicle would then wait for the vehicle blocking exit to enter the property before exiting.

Commissioner Cunningham brought up that although the shoulder improvements would be made, if the City added more infrastructure (sidewalk) there in the future, the shoulder would again be small and not available for queuing and thus didn't want to rely on that. Commissioner Cunninham's preference is for a depth. Staff suggested a depth of one and a half vehicles. The applicant stated they were open to a longer depth to accommodate an extra vehicle.

Chair Roach moved back to finding four and eight and setbacks were discussed more and if they were needed. Commissioner Fonte and Prince both stated that interior setbacks isn't necessarily a detail that needed to be decided and there wasn't discomfort with the perimeter setbacks. Commissioner Prince stated that those people who don't want to live in something that may get built that closely could simply choose not to live there and that no one would be forcing them to do so.

<u>Commissioner Prince made a motion to approve the PUD that included the findings 1-14 in the staff report with the conditions in the staff report and including that the gate depth be 18 feet from the property line. Also the public amenity at the historic Mill site and with a the condition to include the gate being a minimum of 18 foot distance from the property line.</u>

Commissioner Fonte seconded the motion. Vote on Motion: Commissioner Cunningham-Aye; Commissioner Fonte-Aye; Commissioner Prince-Aye; Commissioner Gong-Aye; Commissioner Berndt-Aye; Chair Roach-Aye. The motion passed unanimously.

5. "Amare Vita" Subdivision – Preliminary Plan/Plat – 6114, 6178, 6190 South Holladay Boulevard (R-1-43) and 2715 East 6200 South (R-1-87). Preliminary Level Review and Consideration of Development Details by Applicant J.U.B. Engineering. Review of this 11.42-acre (497,455 square foot) Residential Subdivision is Conducted According to R-1-43 and R-1-83 Zone Compliance and Subdivision Development Submittal and Review Standards According to Holladay Ordinance §13.10A. *File #25-1-08.*

Staff stated that this step was to move to create a preliminary plat that incorporated the previous elements of the PUD Conditional Use.

Commissioner Cunningham noted that finding number five included details referencing floribunda drive that pertained to a previous project. Staff acknowledged the discrepancy and noted that the second portion of finding 5 after the semi-colon would be removed and the first portion could remain as a finding.

Chair Roach opened the public hearing and having no one in attendance to comment, closed the public hearing.

Commissioner Fonte made the motion to approve the preliminary plat with the findings from the staff report, with the second portion of finding number 5 referencing Floribunda removed, and retaining the first portion, after a reminder of what needed to stay by Commissioner Prince. Commissioner Fonte referenced the conditions in the staff report.

Commissioner Berndt seconded the motion. Vote on Motion: Commissioner Cunningham-Aye; Commissioner Fonte-Aye; Commissioner Prince-Aye; Commissioner Gong-Aye; Commissioner Berndt-Aye; Chair Roach-Aye. The motion passed unanimously

ADJOURN

Commissioner Prince moved to ADJOURN. Commission Berndt seconded the motion. The motion passed with the unanimous consent of the Commission.

The Planning Commission Meeting adjourned at approximately 8:30 PM.

I hereby certify that the foregoing represents a true, accurate, and complete record of the City of Holladay Planning Commission Meeting held on Tuesday, September 2, 2025.

Teri Forbes

Teri Forbes
T Forbes Group
Minutes Secretary

Minutes Approved: **December 2, 2025**